

| # | Case Name                                                                    | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|---|------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | <b>2022-01267200</b><br><br><b><i>Anderson vs. Bazoft Automotive LLC</i></b> | <b>Motion to Compel Production</b><br><br>Plaintiffs Jeffrey Anderson and Margaret Parker’s Motion to Compel Further Responses from Defendant Sentry Select Insurance Company to Request for Production, Set Two, filed under Register of Actions No. 594, is continued to 12/11/2025 at 10:00 AM in this department pursuant to Court's motion.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 2 | <b>2022-01287057</b><br><br><b><i>Carney vs. Gardner</i></b>                 | <b>Motion to Quash Subpoena</b><br><br>Plaintiff Melinda Carney’s Motion to Quash Defendants’ Subpoenas is GRANTED.<br><br>The subpoenas issued to Ralph N. Steiger, M.D. c/o Recors Source; Disneyland Cast Health Center; Samimi Orthopedic Group; Open System Imaging; Risser Orthopaedic Group; Beverly Hills Sunset Surgery Center; Sean K. Calahan, R.P.T.; Caludia R. Gold, M.D.; Frank Giacobetti, M.D.; Hill Imaging Center; Harmon Physical Therapy; United Care Health Group; Skylar Orthopedics; Kathleen L. Moore, Ph.D.; Ronald B. Perelman, M.D.; Golden State Sports Injury & Orthopedic Medical Associates, Inc.; Hill Medical Corporation; Leonard Petrus, M.D.; Sonal Lalwani, M.D.; Emanate Health – Queen of the Valley; One Call Care Physical Therapy; Marthin Luther King, Jr. Community Hospital; Spinal Kinetics; Urgent Care 3D; West Covina Medical Center; Bellflower Health Center; Robert D. Sibley, M.D.; Emanante Health Diagnostic Imaging Center; Madison Radiology Medical Group c/o Radnet Management, Inc.; Optum; Optum Radiology Department; West Covina Medical Center; Halo Diagnostics; Kerlan-Job Surgery Center; St. Josphe Hospital; HealthCare Partners Medical Group; UMI of West Covina; Long Beach Comprehensive Health Center; Citrus Diagnostic Imaging; and Medical Specialties Manager, Inc. for medical, billing, and radiology records are limited to records 5 years prior to the incident to present and related to the following body parts and complaints: head, neck, lower back, left shoulder, and both wrists.<br><br>A patient has a privacy interest in a doctor's medical records pertaining to the patient's physical or mental condition. (Lewis v. Superior Court (2017) 3 Cal.5th 561, 575). However, the burden rests on the party asserting a privacy interest to establish the extent and seriousness of the prospective invasion, which must be weighed against the countervailing interests identified by the opposing party. (Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) Although the constitutional right to privacy extends to a patient's medical records, this protection is not absolute, and disclosure of medical histories may be compelled where the need for disclosure outweighs privacy concerns. (Kizer v. Sulnick (1988) 202 Cal.App.3d 431, 438.) The party seeking discovery must show that the information is directly relevant to the case, and that it is essential to determining the truth of the matters in dispute. (Britt v. Superior Court (1978) 20 Cal.3d 844, 859.) |

|          |                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|----------|----------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|          |                                                                                  | <p>The party seeking discovery of confidential information must show a particularized need for the information sought. The court must be convinced that the information is directly relevant to a cause of action or defense, i.e., that it is essential to determining the truth of the matters in dispute. (Britt, supra, 20 Cal.3d 844, 859-862; Weil &amp; Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group June 2018 update) § 8:320.)</p> <p>The subpoenas are overbroad because they seek any and all records without limitation as to scope or time. Plaintiff has shown the body parts and complaints at issue are: head, neck, lower back, left shoulder, and both wrists. Additionally, Defendants do not dispute the list provided by Plaintiff.</p> <p>According, Plaintiff's Motion is granted</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>3</b> | <p><b>2025-01489873</b></p> <p><b><i>Chen vs. Mercedes-Benz USA, LLC</i></b></p> | <p><b>Motion to Compel Arbitration</b></p> <p>Defendant Mercedes-Benz USA, LLC's Motion to Compel Binding Arbitration is GRANTED.</p> <p>Plaintiff Minyi Chen's (Plaintiff) unopposed Request for Judicial Notice is GRANTED. (Evid. Code, §§ 452, 453.)<br/>Plaintiff's objections are OVERRULED.</p> <p>The court will consider Defendant's exhibits that were inadvertently omitted from motion filed with the court, which Defendant attached to its reply.</p> <p>Defendant Mercedes-Benz USA, LLC (Defendant) has brought this motion pursuant to both the Federal Arbitration Act (9 USC § 1-14) (FAA) and the California Arbitration Act (Code Civ. Proc., §§ 1281 et seq.) (CAA).</p> <p><u>Existence of Arbitration Agreement</u></p> <p>A party moving to compel arbitration bears the initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165 (Gamboa).) The moving party can meet its initial burden by either attaching a copy of the arbitration agreement purporting to bear the opposing party's signature to the motion or by setting forth the agreement's provisions verbatim in the motion. (Ibid; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219 (Condee); Cal. Rules of Court, rule 3.1330.) For this step, "it is not necessary to follow the normal procedures of document authentication." (Condee, supra, 88 Cal.App.4th at p. 218.) "If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. (Gamboa, supra, 72 Cal.App.5th at p. 165.)</p> |